

103	Garibay Silva vs. Nieves Landscape, Inc., a California corporation 2025-01500937	1. Case Management Conference 2. Motion to Compel Arbitration CMC CONTINUED AND MTC HEARING VACATED
105	CARMONA vs. ARROWHEAD PRODUCTS CORPORATION 2022-01295275	1. Motion Other To Exclude Testimony re Class Cert 2. Motion to Certify Class 3. Status Conference Having read and considered the parties' Joint Case Management Conference Statement (ROA 146), it is hereby ordered that the June 4, 2026, hearing set for defendant's motion is VACATED. The CMC is continued to August 6, 2026 at 2PM in CX102. The parties shall submit a joint CMC statement 10 days in advance Clerk to give notice.
106	Quinn vs. Valley Post-Acute And Rehab LLC 2025-01518740	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Deposition (Oral or Written) 5. Motion to Compel Production 6. Motion to Compel Response to Requests for Admissions <u>Motion No. 1: Compel Responses to Form Interrogatories, Set One</u> Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection Form Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 2: Compel Responses to Request for Identification and Production of Documents, Set One

Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection plaintiff's Request for Identification and Production of Documents, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 3: Compel Responses to Special Interrogatories, Set One

Plaintiff Harvey Quinn's unopposed motion to compel defendant Valley Post-Acute and Rehab, LLC to answer without objection plaintiff's Special Interrogatories, Set One, is GRANTED. Responses are due within 30 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 4: Deem Requests for Admission, Set One, Admitted

Plaintiff Harvey Quinn's unopposed motion to deem admitted each Request for Admission, Set One, served on Defendant Valley Post-Acute and Rehab, LLC, is GRANTED.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$1,210.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Motion No. 5: Compel the Deposition of Person Most Knowledgeable

Plaintiff Harvey Quinn's unopposed motion to compel the deposition of the Person Most Knowledgeable of defendant Valley Post-Acute and Rehab, LLC is GRANTED. The deposition is to take place at a mutually agreeable location within 45 days notice of this order, unless the parties agree otherwise.

The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$1,210.00, payable by defendant Valley Post-Acute and Rehab, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030.

Plaintiff is ordered to give notice.

107	Aguilar vs. Vista Paint Corporation 2022-01291751	Motion for Final Approval of Class and PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$1,400,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to grant the motion as follows: \$5,000.00 for plaintiff's enhancement payment; \$420,000.00 for attorneys' fees; \$27,866.80 for litigation costs; \$11,000 for settlement administration costs; and \$40,000 total PAGA penalties (\$30,000 to LWDA). Plaintiff is ordered to submit within 10 days the administrator's supplemental declaration cited in and supporting plaintiff's responses to issue nos. 2 and 3 in the court's prior minute order. ROA 176. While counsel relies upon and states such a supplemental declaration has been filed, it has not. See ROA 183 ¶¶ 2-3 (citing "Supplemental Declaration of Taylor Mitzner with Respect to Notice and Settlement Administrator ('Supp. Admin. Decl.')." Plaintiff is ordered to submit within 10 days a proof of service showing, in detail, that all supplemental final approval moving papers were served on the LWDA. While plaintiff counsel's represents such proof of service would be "filed concurrently with the instant submission," no such filing exists. ROA 185 ¶ 3. The final accounting hearing is scheduled for June 3, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance. Plaintiff shall within 5 days submit a revised final order and judgment consistent with this ruling. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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